

Court No. - 40

Case :- WRIT - C No. - 32085 of 2024

Petitioner :- Sudhanshu Dhar Tripathi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anurag Tripathi, Praveen Kumar Shukla, Santosh Kumar Tripathi

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Shekhar B. Saraf, J.

Hon'ble Kshitij Shailendra, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State as well as learned counsel for the respondent-Electricity Department.

2. The dispute raised in the present writ petition is with regard to the correctness of the electricity bills being sent by the respondent-Electricity Department from March, 2024 onwards.

3. Submission of learned counsel for the petitioner is that upto February, 2024, bills regarding consumption of electricity were being issued which disclosed figures around Rs.8,000/-, Rs.9,000/- and Rs. 10,000/- etc. and the amount was paid, however, suddenly, after February, 2024 onwards, the amount of every bill is being shown exceeding Rs.50,000/-. He submits that raising grievance regarding exaggerated bills, certain applications were filed by the petitioner but the department has not passed any order.

4. *Per contra*, learned counsel for the respondent-department submits that some investigation was carried out in March, 2024 whereupon it stood revealed that the petitioner is required to pay the amount and correct bills were issued.

5. However, we are not going into the details of the dispute which may involve factual aspects but, at the same time, we deem it appropriate to dispose off the instant petition with certain directions in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005 (hereinafter referred to as 'the Code of 2005').

6. In view of the above, the instant writ petition is **disposed off** with the following directions:-

(i). The petitioner shall make a fresh application before concerned Executive Engineer within **three weeks from today** and shall also deposit a sum of **Rs.1,00,000/-** within the same time.

(ii). After the said requirements are completed by the petitioner, the concerned officer shall consider the cause of the petitioner in terms of Clause 6.5 of the Code of 2005 and shall dispose off the application by passing a reasoned and speaking order within **next four weeks**, after providing opportunity of hearing to the petitioner.

(iii). The decision shall be immediately communicated to the petitioner by registered speed post.

Order Date :- 20.1.2025
Jyotsana

(Kshitij Shailendra, J.) (Shekhar B. Saraf, J.)